
THE ESSAYS OF FRANCIS BACON

the client the reputation of his counsel, and beats down in him the conceit of his cause. There is likewise due to the public a civil reprehension of advocates where there appeareth cunning counsel, gross neglect, slight information, indiscreet pressing, or an overbold defense; and let not the counsel at the bar chop with the judge, nor wind himself into the handling of the cause anew after the judge hath declared his sentence; but, on the other side, let not the judge meet the cause half-way nor give occasion to the party to say his counsel or proofs were not heard.

Thirdly, for that that concerns clerks and ministers. The place of justice is an hallowed place; and therefore not only the bench but the footpace and precincts and purprise thereof ought to be preserved without scandal and corruption; for, certainly, grapes (as the Scripture saith) will not be gathered of thorns or thistles; neither can justice yield her fruit with sweetness amongst the briers and brambles of catching and polling clerks and ministers. The attendance of courts is subject to four bad instruments: First, certain persons that are sowers of suits, which make the court swell and the country pine. The second sort is of those that engage courts in quarrels of jurisdiction, and are not